



A DUTY OF CARE

DONOGHUE V. STEVENSON (1932)

IN CONTEXT

FOCUS
Tort law

BEFORE

1842 In the *Winterbottom v. Wright* case in the UK, judges rule against a coach driver who claims he is injured because of negligent maintenance by the coach provider.

AFTER

1943 The House of Lords holds that a duty of care does not extend to those traumatized after witnessing accidents. The 1982 *McLoughlin v. O'Brian* case recognizes such a duty.

1951 The duty of care principle is applied to a woman who is hit on the head by a cricket ball in a case that clarifies what a defendant needs to foresee.

1970 *Donoghue v. Stevenson* is cited in a landmark case involving damage to boats by young offenders in the care of the Home Office.

Damage occurs to an individual allegedly as a result of **carelessness** on the part of **another person**.



The **defendant** could have **reasonably foreseen** that their conduct was **likely to injure someone**.



The “**love thy neighbor**” principle extends to anyone bound to be affected by **careless acts**.



It is fair to impose a responsibility on the defendant for their actions.

On August 26, 1928, May Donoghue and a friend stopped at a café in Paisley, Scotland, where the friend ordered drinks for the pair. Donoghue had a Stevenson's ginger beer, which came in an opaque brown glass bottle that obscured the liquid inside. She poured and drank some of the ginger beer, but then noticed that a decomposing

snail had fallen out of the bottle. She was shaken by this and became ill shortly afterward.

The owner of the café was clearly not to blame since the sealed bottles had been delivered to him by the manufacturer, David Stevenson, and he couldn't see the contents within. Crucially, May Donoghue was not Stevenson's customer—her friend was, because